

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/09/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01591861 The Irvine Company LLC vs. Velazquez	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 11), Plaintiff's Opposition (ROA 17) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
2	30-2026-01591193 Viva Associates vs. Vazquez	The Court has read and considered the Defendants' Demurrer to Complaint and Motion to Strike (ROA 8) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendants are ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to serve notice of the Court's ruling.

3	30-2026-01583021 Sunset Ridge Investment LP vs. Martinez	The Court has read and considered the Plaintiff's Motion to Deem Request for Admission, Set One Admitted to Julio C. Martinez and Fernando Reyes (ROA 44). IT IS ORDERED that the Plaintiff's Motion to Deem Request for Admission, Set One Admitted as to Julio C. Martinez and Fernando Reyes is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendants on August 13, 2026, be deemed admitted. The Court orders Defendants, Julio C. Martinez and Fernando Reyes, forthwith to pay a sanction in the amount of \$810 to Plaintiff's Counsel. This sum shall be made payable to "Kimball, Tirey & St. John, LLP" within 5 business days of service of this order and shall be delivered via mail to Kimball, Tirey & St. John, LLP, 2040 Main Street, Suite 500, Irvine, CA 92614. If any party is required to further enforce the terms herein, the party enforcing this Judgment shall be entitled to further attorney's fees and costs. The Court Orders Plaintiff to provide notice of the Court's ruling.
10	30-2026-01590441 Nguyen vs. McIntosh	The Court has read and considered the Defendants' Demurrer to Amended Complaint (ROA 11), the Amended Complaint (ROA 7) and Plaintiff's Opposition (ROA 24). California Civil Code § 1954.535 provides that an owner must provide a tenant subject to an agreement or contract with a government agency with 90 days' written notice of the termination of the contract. This California Civil Code section does not exempt a landlord from the requirements under the Tenant Protection of 2019 if it applies to the tenancy, requiring notice under the just cause provision under Civil Code section 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Plaintiff answered 7(b) in the Amended Complaint that the Tenant Protection Act of 2019 applies and that, under 8(a), the tenancy was terminated for at-fault just cause. Serving a valid notice under Cal Code Civ Proc § 1161 is an absolute jurisdictional prerequisite to filing an unlawful detainer complaint. The California Court of Appeal held, "The Unlawful Detainer Act establishes procedures for resolving disputes between landlords and tenants regarding the right to possess real property. (<i>Stancil v. Superior Court</i> (2021) 11 Cal.5th 381, 394 [278 Cal.Rptr.3d 27, 485 P.3d 446].) Unlawful detainer proceedings are summary in nature, providing for shorter timelines and a more limited scope than standard civil actions. (<i>Id.</i> at p. 390; <i>Barela v. Superior Court</i> (1981) 30 Cal.3d 244, 249 [178 Cal.Rptr. 618, 636 P.2d 582].) These proceedings seek to balance tenants' occupancy rights against landlords' rights to earn income. (<i>Stancil</i>, at p. 390.) They also demand strict procedural compliance. (<i>Ibid.</i>) Code of Civil Procedure section 1161 sets forth the circumstances under which a tenant is guilty of unlawful detainer and may be evicted. (Code Civ. Proc., § 1161, items 2–4; <i>Stancil</i>, at p. 395.)" (<i>California Apartment Assn. v. City of Pasadena</i> (2025) 117 Cal.App. 5th 187, 241-242.) The 90-day notice required by Cal Civ Code § 1954.535 serves a distinct purpose: it manages the transition, rent obligations, and termination of a

		government-subsidized contract Cal Civ Code § 1954.535. It does not substitute for, nor does it excuse a landlord from, serving the mandatory three-day or other statutory notices for the basis of a just cause eviction required under CCP section 1161 if the tenant remains in possession after the transition period and the landlord seeks eviction. The 90 Day Notice attached to the Amended Complaint does not meet the legal notice requirements for a just cause termination pursuant to Civil Code § 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Court SUSTAINS the Demurrer. As Plaintiff alleges in its moving papers that it has served the requisite notices to comply with the requirements under California Code of Civil Procedure § 1161, the Court will allow the Plaintiff leave to amend the Complaint to include such notices which comport with the legal requirements under CCP §1161. The Court orders the Plaintiff to file the Amended Complaint within 5 business days. The Court Clerk is to provide notice of the Court's ruling.
11	30-2026-01575211 Main Street Management, Inc vs. Rios	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 48). The Court takes Judicial Notice of the 8/28/2026 Minute Order, Motion to Dismiss (ROA 19), Proof of Service of 10-day Summons & Complaint-Personal (ROA 11), and Notice of Ruling (ROA 47). On August 28, 2026 this Court made the following findings and orders: "The Court has read and considered the Defendant's Motion to Dismiss (ROA 19). A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory period. The Defendant filed this Motion on June 17, 2026 and chose to calendar it for August 28, 2026, more than 2 months after filing it and well outside the statutory time period for unlawful detainers. Furthermore, Defendant does not allege that the Complaint is not facially sufficient for an unlawful detainer complaint. Defendant's sole contention for the basis to dismiss the complaint is that Defendant has experienced economic hardship and would like to remain in the property. The Court DENIES the Motion to Dismiss. As such, the Court orders the Defendant to file an Answer within 3 calendar days. Plaintiff is ordered to provide notice of the Court's ruling." California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendant failed to provide evidence to rebut the presumption established under Evidence Code section 647. Here, registered process server John Cuevas (San Bernardino #1580) personally served Javier Rios with a description on 6/6/2026 at 9:39 AM.

		Defendant provides no support for his contention that he was not properly served. The Defendant's self-serving statements alone do not rebut the presumption under Evidence Code section 647. Furthermore, the Court finds that Defendant failed to follow the Court's previous order by filing a Motion to Quash Service instead of an Answer. Defendant never raised the issue of service in his motion to dismiss and was ordered to file only an Answer. The Court orders the Defendant to file an Answer ONLY within two calendar days. If the Defendant fails to follow the Court's orders, the Court may sanction the Defendant by striking the response and entering a default, or by imposing monetary sanctions. The Court Clerk is to provide notice of the Court's ruling.